PREPARED FOR:

Mr. Joseph Montana
Montana Contracting Corp.
200 East Erie Street
Blauvelt, NY 10913

PROJECT:

Mopar Parts Distribution Center
Mopar Parts Distribution Center - Stellantis
32 Patriot Way, Hopewell Junction
East Fishkill, NY 12533
Electrical Work Proposal

Date Submitted:
Friday, June 27, 2025

NON-DISCLOSURE STATEMENT

This submission contains information which is proprietary to USIS and is provided on a strictly confidential basis for the sole purpose of evaluation of USIS as part of a designated selection process.

It is to be held by the recipient, its representatives, agents and assigns in strict confidence and not used, either directly or indirectly, or disclosed to any third parties, at any time or for any purpose.

Neither this submission nor its contents may be communicated or reproduced to any other person or entity other than those to whom it was delivered and may be reviewed by that person or entity only for the purposes designated hereinabove.

GENERAL CRITERIA

1) **Due to commodity volatility in the global market this price is only valid for 15 days.**
2) This proposal only includes work described in our proposal documents. This proposal will specifically describe the customer provided documents (if any) that were used in its creation.
3) USIS requires free and unobstructed access to all areas of work covered by this proposal throughout the work day for the duration of the project.
4) USIS professional liability insurance policy has a $5,000,000 limit and a $1,000,000 limit on auto insurance, total "Excess/Umbrella" coverage is $13M. Should greater coverage be required, USIS will supply for an additional charge. Insurance certificates will be issued upon request and receipt of all pertinent information.
5) All USIS work is covered under a one year workmanship warranty which begins upon completion of the installation. Other manufacturer warranties will be extended to the end user where applicable.
6) All work areas must be free of asbestos and other hazardous materials and conditions.
7) All payments are due within 30 days of invoice date unless terms within a fully executed Services Agreement between the parties exist.
8) All union labor in NYC Metro Area is affiliated with IUJAT Local 726 and/or CWA Local 4340.
9) Sales tax, use tax and/or VAT tax shall be added to all invoices unless the Customer has provided the required tax exemption documents to USIS prior to the commencement of work.
10) Idle time incurred by USIS staff due to factors beyond our control will be invoiced at current labor rates.
11) Should either party elect to terminate the project prior to completion, USIS shall be paid for all products and services performed up to the date of the receipt of the notice of termination. USIS shall be given the opportunity to participate in any settlement negotiations.
12) Client is responsible for all restocking costs and freight if equipment is changed or cancelled after materials are shipped from manufacturer or distributor to USIS.
13) Unless specifically stated otherwise, the following costs are expressly excluded from this proposal: permits, other fees required by governmental agencies, performance bond and/or payment bond.
14) Unless specifically stated otherwise, the following items are expressly excluded from this proposal: demolition work, debris removal, patching, painting, hoisting and/or rigging.
15) Unless specifically stated otherwise, this proposal assumes work will be performed during normal business hours (weekdays 8am to 4pm) excluding holidays. A normal work day consists of eight continuous hours of work in the period described above.
16) Unless specifically stated otherwise in the Pricing Section of this proposal, all pricing provided in this proposal Excludes Prevailing Wage requirements. If after this proposal is accepted it is determined that this project is subject to Prevailing Wage requirements, USIS may suspend work until all additional labor costs (including fees and penalties) beyond USIS' standard labor costs are memorialized in a Change Order to the contract which the Client agrees to pay. This suspension of work shall not be considered a Breach by USIS and the total time of the suspension of work shall be added to USIS's completion schedule.
17) USIS will not adhere to any Liquidated Damages policy, unless specifically defined within the USIS proposal.
18) Please note as this is a commercial installation some consumer (residential) grades products manufacture warranty will not be valid, and as such these products will be excluded from the USIS Audio Visual Systems warranty.

Electrical Work - Base Bid

	Grand Total
1. Adding (1) 20A circuit from UPS in server room to new cabinet. 2. Work will be done on a Sunday.	$3,470.14

Option: 1

Initial here for the option selected: _____

This proposal is based on the attached USIS scope of work only.

This Electrical Work proposal is subject to the following criteria:

1. All work done on overtime.
2. All work to be competed by IUJAT (International Union of Journeymen and Allied Trades) union employees.
3. Copper/Aluminum/Steel prices are subject to change after 30 days from date of this proposal.

Payment Terms:

Payment due 30 days after receipt of invoice.

Estimate #: 166448-1
June 27, 2025

Summary of Base Scope Proposal

	Grand Total
Electrical Work	**$3,470.14**
	$3,470.14
Grand Total:	**$3,470.14**

This price is based upon U.S. Information Systems, Inc. receiving a completed CCI from the client.
If a CCI is not provided, the client agrees to pay any and all calculated taxes to U.S. Information Systems, Inc..

In the event that you hire any employee of U.S. Information Systems, Inc. or any of its affiliates during the term of our agreement or twelve (12) months thereafter, you agree to pay us a fee equal to one year of billing at the above listed Straight Time rate of the employee's classification. If no classification applies, the highest classification rate will be used.

Signature below represents customer's acceptance of the terms of this proposal and authorization for U.S. Information Systems, Inc. to proceed with work. This Agreement is not valid until signed and countersigned.

The undersigned understands that contracted work will not commence until this signed Proposal or an executed Purchase Order have been received by U.S. Information Systems, Inc..

***NOTE: If your Company/Institution does not issue Purchase Orders exclusively, complete the relevant sections on the attached form - "Proposal Approval Form".**

Authorized Signature	Print Name	Title	Date
Robert Lagana	U.S. Information Systems, Inc.		

Estimate: 166448-1
June 27, 2025

PROPOSAL APPROVAL FORM

Please have an individual who can authorize payment complete and sign the relevant sections below and return to USIS:

REQUIRED APPROVAL DOCUMENTS FOR INVOICING

☐ **Our Company/Institution issues Purchase Orders.** The undersigned understands that contracted work will not commence until a signed Estimate/Proposal and an executed Purchase Order have been received by USIS.

☐ **Our Company/Institution does not issue Purchase Orders,** but instead accepts the following as valid approval documents for invoicing in lieu of PO's:

Document Type:	When Applicable:		Contact Information for Invoicing: (Name, Email, Phone):
☐ Purchase Order	☐ Base Bid	☐ Change Order	_____
☐ Executed Contract Agreement	☐ Base Bid	☐ Change Order	_____
☐ Executed Subcontract Agreement	☐ Base Bid	☐ Change Order	_____
☐ Signed Work Authorization	☐ Base Bid	☐ Change Order	_____
☐ Pre-Pay All Work by Credit, Cash, Check	☐ Base Bid	☐ Change Order	_____

INVOICING FORMATS:

Do you have specific invoicing formats? ☐ YES ☐ NO

If YES, please complete this section:

☐ AIA Billing (Provide Required Format): _____

☐ Portal (Provide Portal Name and Portal Contact Info): _____

☐ Other (Please Specify Format and/or Append Requirements): _____

TAX FORMS:

☐ CERTIFICATE OF CAPITAL IMPROVEMENT ☐ TAX EXEMPT CERTIFICATE ☐ RESALE CERTIFICATE

☐ **Please check here if the above selections apply for all current and future work contracted to and completed by USIS or any of its Affiliates.**

The undersigned understands that work will not commence until the executed document(s) outlined above has(have) been received by USIS.

Signature:_____ Date: _____

Print Name: _____

Title: _____

Email: _____

Phone: _____

Department of Taxation and Finance

New York State and Local Sales and Use Tax

Certificate of Capital Improvement

ST-124
(12/15)

After this certificate is completed and signed by both the customer and the contractor performing the capital improvement, it must be kept by the contractor. Copies of this certificate must be furnished to all subcontractors on the job and retained as part of their records.

Read this form completely before making any entries.

This certificate may not be used to purchase building materials exempt from tax.

Name of **contractor** *(print or type)*	Name of **customer** *(print or type)*
Address *(number and street)*	Address *(number and street)*
City State ZIP code	City State ZIP code
	Sales tax *Certificate of Authority* number (if any)

To be completed by the customer

Describe capital improvement to be performed:

Project name		
Street address (where the work is to be performed)	City	State ZIP code

I certify that:

- I am the *(mark an **X** in one)* ☐ owner ☐ tenant of the real property identified on this form; **and**
- the work described above will result in a capital improvement to the real property as outlined in the instructions of this form; **and**
- this contract *(mark an **X** in one)* ☐ includes ☐ does not include the sale of any items that will **not** become a permanent part of the real property (for example, a free-standing microwave or washing machine).

I understand that:

- I will be responsible for any sales tax, interest, and penalty due on the contractor's total charge for tangible personal property and for labor if it is determined that this work does not qualify as a capital improvement; **and**
- I will be required to pay the contractor the appropriate sales tax on tangible personal property (and any associated services) when the property installed by the contractor does not become a permanent part of the real property; **and**
- I will be subject to civil or criminal penalties (or both) under the Tax Law if I issue a false or fraudulent certificate.

Signature of customer	Title	Date

To be completed by the contractor

I, the contractor, certify that I have entered into a contract to perform the work described by the customer named above, and that I accept this form in good faith. (A copy of the written contract, if any, is attached.) I understand that my failure to collect tax as a result of accepting an improperly completed certificate will make me personally liable for the tax otherwise due, plus penalties and interest.

Signature of contractor or officer	Title	Date

This certificate is not valid unless all entries are completed.

Instructions

When the customer completes this certificate and gives it to the contractor, who accepts it in good faith, it is evidence that the work to be performed will result in a capital improvement to real property.

A capital improvement to real property is an addition or alteration to real property that:

(a) substantially adds to the value of the real property or appreciably prolongs the useful life of the real property, **and**

(b) becomes part of the real property or is permanently affixed to the real property so that removal would cause material damage to the property or article itself, **and**

(c) is intended to become a permanent installation.

The work performed by the contractor must meet all three of these requirements to be considered a capital improvement. This certificate may not be issued unless the work qualifies as a capital improvement. See Tax Bulletin *Capital Improvements* (TB-ST-104).

If a contractor performs work that constitutes a capital improvement, the contractor must pay tax on the purchase of building materials or other tangible personal property, but is not required to collect tax from the customer for the capital improvement. No credit or refund is allowed for the tax paid on the cost of materials by the contractor. See Tax Bulletin *Contractors – Sales Tax Credits* (TB-ST-130).

For guidance as to whether a job is a repair or a capital improvement, see Publication 862, *Sales and Use Tax Classifications of Capital Improvements and Repairs to Real Property.*

A contractor, subcontractor, property owner, or tenant, may not use this certificate to purchase building materials or other tangible personal property tax free. A contractor's acceptance of this certificate does not relieve the contractor of the liability for sales tax on the purchase of building materials or other tangible personal property subsequently incorporated into the real property as a capital improvement unless the contractor can legally issue Form ST-120.1, *Contractor Exempt Purchase Certificate*. (See Publication 862 for additional information.)

The term *materials* is defined as items that become a physical component part of real or personal property, such as lumber, bricks, or steel. This term also includes items such as doors, windows, sinks, and furnaces used in construction.

Floor covering

Floor covering such as carpet, carpet padding, linoleum and vinyl roll flooring, carpet tile, linoleum tile, and vinyl tile installed as the initial finished floor covering in new construction, a new addition to an existing building or structure, or in a total reconstruction of an existing building or structure, constitutes a capital improvement regardless of the method of installation. As a capital improvement, the charge to the property owner for the installation of floor covering is **not** subject to New York State and local sales and use taxes. However, the retail purchase of floor covering (such as carpet or padding) itself is subject to tax.

Floor covering installed other than as described above does not qualify as a capital improvement. Therefore, the charges for materials and labor are subject to sales tax. The contractor may apply for a credit or refund of any sales tax already paid on the materials.

The term *floor covering* does **not** include flooring such as ceramic tile, hardwood, slate, terrazzo, and marble. The rules for determining when floor covering constitutes a capital improvement do not apply to such flooring. The criteria stated in (a), (b), and (c) above apply to such flooring.

Temporary facilities at construction sites

Subcontracts to provide temporary facilities at construction sites that are necessary for the construction of a capital improvement are considered to be part of the capital improvement project. Examples of temporary facilities include temporary:

- heat, electric, or plumbing services;
- protective pedestrian walkways; and
- scaffolding services.

A primary contractor purchasing qualifying temporary facilities from a subcontractor must give the subcontractor a copy of Form ST-124 issued to the primary contractor by the customer (including a customer that is an exempt organization) to purchase the subcontractor's services exempt from tax.

A certificate is accepted in good faith when a contractor has no knowledge that the certificate is false or is fraudulently given, and reasonable ordinary due care is exercised in the acceptance of the certificate.

If a contractor gets a properly completed Form ST-124 from the customer within 90 days after rendering services, and accepts it in good faith, the customer bears the burden of proving the job or transaction was not taxable.

If you are a contractor who installs items such as washing machines, clothes dryers, dishwashers, refrigerators, furniture, etc., which when installed or placed in real property do not become part of the real property, you must collect tax on your charge for the installation. The individual charge for any of these items is also taxable as the sale of tangible personal property.

If a contractor does not get a properly completed *Certificate of Capital Improvement* within 90 days, the contractor bears the burden of proving the work or transaction was a capital improvement. The failure to get a properly completed certificate, however, does not change the taxable status of a transaction; a contractor may still show that the transaction was a capital improvement.

Contractors and subcontractors must keep any exemption certificate for at least three years after the due date of the last return to which it relates, or the date the return was filed, if later. The contractor must also maintain a method of associating an exempt sale made to a particular customer with the exemption certificate on file for that customer.

Need help?

Visit our website at ***www.tax.ny.gov***

- get information and manage your taxes online
- check for new online services and features

Telephone assistance

Sales Tax Information Center:	(518) 485-2889
To order forms and publications:	(518) 457-5431
Text Telephone (TTY) Hotline (for persons with hearing and speech disabilities using a TTY):	(518) 485-5082

Persons with disabilities: In compliance with the Americans with Disabilities Act, we will ensure that our lobbies, offices, meeting rooms, and other facilities are accessible to persons with disabilities. If you have questions about special accommodations for persons with disabilities, call the information center.

Privacy notification

See our website or Publication 54, *Privacy Notification*.